

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jean Paul Lozada	Team: Squad #09	CCRB Case #: 201705773	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 07/18/2017 1:16 AM	Location of Incident: Riverside Drive & West 134th Street	18 Mo. SOL 1/18/2019	Precinct: 30
Date/Time CV Reported Tue, 07/18/2017 2:38 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 07/18/2017 2:38 AM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM John Mascetti	16396	943710	CW T TF
2. POF Bridget Courtney	23736	925248	CW T TF

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Aaron Blum	06711	929742	TAXI UT

Officer(s)	Allegation	Investigator Recommendation
A . POM John Mascetti	Abuse: Police Officer John Mascetti refused to provide his name and shield number to § 87(2)(b) [REDACTED]	A . Substantiated
B . POF Bridget Courtney	Abuse: Police Officer Bridget Courtney refused to provide her name to § 87(2)(b) [REDACTED]	B . Substantiated

Case Summary

On July 18, 2017, § 87(2)(b) L. § 87(2)(b) filed this complaint with the CCRB via the on-line website.

On July 18, 2017, at approximately 1:16 a.m., § 87(2)(b) began filming a traffic stop effected by PO John Mascetti, PO Bridget Courtney, and PO Aaron Blum of the Manhattan Traffic Task Force at Riverside Drive and West 134th Street in Manhattan. § 87(2)(b) stopped filming, and PO Mascetti shined a flashlight into § 87(2)(b)'s eyes. § 87(2)(b) started filming again and he repeatedly asked PO Mascetti and PO Courtney to identify themselves. He specifically requested PO Mascetti's name and shield number, and he said to PO Courtney, "Who are you," and, "You need to identify yourself to me." The officers did not respond and left the scene without providing their names or shield numbers to § 87(2)(b) (**Allegations A and B**).

In his on-line complaint, § 87(2)(b) provided a link to his video of the incident. The full video is embedded below and can also be found in Board Review 01 and in IA#6.



201705773_20170718_1635_DM.mp4

Mediation, Civil and Criminal Histories

- Mediation was offered to § 87(2)(b) during his telephone statement on July 19, 2017, and he rejected mediation § 87(2)(b).
- As of August 29, 2017, § 87(2)(b) has not filed a notice of claim in regards to this incident (Board Review 02).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the third CCRB complaint in which § 87(2)(b) is involved (Board Review 04).
 - § 87(2)(b)
- PO Mascetti has been a member of the NYPD for ten years and is the subject of four prior CCRB allegations involving one case with no substantiated allegations. § 87(2)(g)
- PO Courtney has been a member of the NYPD for 17 years and is the subject of six prior CCRB allegations involving four cases with no substantiated allegations. § 87(2)(g)

Potential Issues

- § 87(2)(b) was highly uncooperative and hostile during numerous telephone calls, and he refused to schedule an interview until he learned why it is the CCRB's policy that he cannot make his own recording of his sworn statement. § 87(2)(g)
- As such, no sworn statement was obtained from § 87(2)(b)

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(b) alleged that when he stopped filming, PO Mascetti temporarily blinded him by shining his flashlight in his eyes. § 87(2)(g)

Allegation A – Abuse of Authority: PO John Mascetti refused to provide his name and shield number to § 87(2)(b)

Allegation B – Abuse of Authority: PO Bridget Courtney refused to provide her name to § 87(2)(b)

§ 87(2)(b) stated that after PO Mascetti pointed his flashlight at him, PO Mascetti and PO Courtney refused to identify themselves to him upon his request, and that he learned their names by reading their nameplates. He stated that he did not ask the officers for their names or shield numbers before he started filming.

§ 87(2)(b)'s video (Board Review 01) corroborates his account of the incident. § 87(2)(b) loudly asked PO Mascetti for his name and shield number numerous times while PO Mascetti was standing outside of his police vehicle, and PO Mascetti did not say anything to § 87(2)(b) in response. While PO Courtney was walking to the stopped vehicle to issue the driver a summons, § 87(2)(b) said, "Who are you?" and while she was walking back towards the police vehicle, he said, "You need to identify yourself to me." PO Courtney also said nothing to § 87(2)(b) in response. The officers left the scene without PO Mascetti or PO Courtney verbally providing their names or shield numbers to § 87(2)(b).



201705773_20170718_1635_DM.mp4

Prior to being shown § 87(2)(b)'s video, PO Mascetti stated that § 87(2)(b) asked for his name and shield number and that he did not say anything to § 87(2)(b) in response because § 87(2)(b) had already read his shield and nameplate. After reviewing the video, PO Mascetti stated that he did not respond to § 87(2)(b)'s request for his name and shield number because he and his partners had a vehicle stopped and he was not going to engage with a third-party individual when his direction was directed elsewhere. PO Mascetti stated that at the time, he was monitoring traffic travelling north on Riverside Drive because an accident had occurred nearby.

Prior to being shown § 87(2)(b)'s video, PO Courtney stated that § 87(2)(b) asked her for her name and that she did not respond because she was dealing with the driver and not § 87(2)(b) and her conversation with the driver was more important than § 87(2)(b)'s request for her name. After reviewing the video, which shows § 87(2)(b) requesting her identity while she was talking towards and away from the motorist, PO Courtney stated that she was not paying attention to § 87(2)(b) because she was concentrating on the motorist so she could note his statements on the rear of the summons.

Patrol Guide Procedure 203-09 (Board Review 07) states that an officer must courteously state

It is undisputed that § 87(2)(b) asked PO Mascetti and PO Courtney for their names and shield numbers numerous times and that they left the scene without responding to § 87(2)(b)'s request.

[illegible]

Squad: 9

Reviewer: _____

Title/Signature Print Date